

produced using a computer (see also OJ 2020, A37). The requirements for board decisions are set out in R. 102 EPC.

In J 16/17 the board held that the requirement laid down in R. 113(1) EPC, according to which decisions from the European Patent Office must be signed by and state the name of the employee responsible, is not just a mere formality but an essential procedural step in the decision-taking process. The name and the signature serve to identify the decision's authors and express that they unconditionally assume responsibility for its content. This requirement is aimed at preventing arbitrariness and abuse and ensuring that it can be verified that the competent body has taken the decision. It therefore constitutes an embodiment of the rule of law.

In T 989/19 the board held that, where the cover page of the examining division's decision had not been signed by all the division's members, this amounted to a substantial procedural violation and the decision was invalid. Under R. 113(1) EPC, EPO decisions had to be signed by the employee responsible and state their name. Since, in addition, Art. 18(2) EPC stipulated that examining divisions consisted of three examiners, the signatures of all three of those examiners were required.

### 3.3.1 Decisions to be signed

R. 113 EPC says that decisions, summonses, notices and communications from the EPO must be signed by, or bear the seal of, the employee responsible. In T 390/86 the board decided that if the decision of a particular division was to be legally valid it had to bear the signatures of the members who had been appointed to that division to decide the issue.

### 3.3.2 Examples of invalid signatures

#### a) When decision is announced in oral proceedings

The written reasons for a decision delivered during oral proceedings can only be signed by members of the deciding body who took part in the oral proceedings. The same principle applies if between the orally delivered decision and the written decision proceedings in accordance with R. 58(4) EPC 1973 (R. 82(1) EPC) have taken place (T 390/86, OJ 1989, 30). In T 390/86 the board also stated that in a case where a final substantive decision has been given orally by an opposition division during oral proceedings, if the subsequent written decision giving the reasons for such oral substantive decision is signed by persons who did not constitute the opposition division during the oral proceedings, the decision is invalid.

In T 243/87 the board declared a decision to be null and void where one of the three signatures was provided by a member who had not attended the oral proceedings.

#### b) Director's signature in place of examiner's signature

In T 211/05 the board held that a director's signature purporting to be on behalf of the second examiner was invalid because nothing in the EPC 1973 authorised a director to

sign on behalf of a member of an examining division to which he did not himself belong (see also T.1033/16).

### 3.3.3 Examples of valid signatures

#### a) Computer-generated communications

Under R.113(2) EPC the signature can be replaced by a seal when a computer is used to produce the decision.

In T.225/96, the board noted that the forms accompanying the decisions are never signed, because they are computer-generated and therefore, under R.70(2) EPC 1973 (R.113(2) EPC), a seal may replace the signature.

In J.14/07 a communication produced using a computer in which a request for reimbursement of 50% of the examination fee had been refused was found to constitute a decision within the meaning of Art.106(1) EPC 1973. Since it indicated the name of the formalities officer responsible and bore a seal, it complied with the requirements of the then applicable R.70(2) EPC 1973 (now R.113(2) EPC).

#### b) Death of examiner between oral proceedings and written decision

In T.1170/05 one of the examiners had died and so the decision of the first instance bore the signatures of only two of the three members of the division, the chairman signing on behalf of the deceased examiner. The chairman explicitly declared in a note that the written grounds reflected those which had been discussed during the deliberation of the examining division, and which had led to the decision announced at the end of the oral proceedings. This was held to comply with the case law of the boards of appeal, in particular, T.243/87 (see in this chapter III.K.1.3.2); the decision was valid.

#### c) Decision in written proceedings

In T.777/97, only two of the members of the opposition division had signed the contested decision refusing a request for correction, one purporting to sign on behalf of the absent chairman. According to the board, decisions T.390/86 and T.243/87 (see in this chapter III.K.1.3.2) were not directly applicable, because the case in hand concerned a decision taken in a written procedure on the basis of the evidence on file, whereas those two cases had been concerned with the opposition divisions' composition during the oral proceedings at which the decision was announced, in connection with the requirement that the subsequent written decisions giving the reasons for those oral decisions be signed by the same members. The conclusions reached in T.243/87 could nevertheless be applied by analogy. It went without saying that only those members who had taken the decision could decide on a request for its correction, but if one of the three members of the decision-making department was absent (here: the chairman), one of the others (here: the first examiner) could sign on that absent member's behalf.

## d) Illegible signature

In D 8/82 (OJ 1983, 378) the surname of the signature appeared only as a mark in which one could still discern the first letter and which was recognisably intended as a signature. The board held that it was valid since in several contracting states of the EPO there is no requirement that a signature be legible or recognisably composed of letters. It is enough that it serves to identify the signatory.

## e) Draft decisions

In T 225/96, only the first examiner on the opposition division had signed the contested decision. The board sent the case back to the division for regularisation, but the three non-signing members replied that they were not prepared to put their names to a text issued without their knowledge or approval. The board observed that, in general, the decision as notified to the parties was presumed to be authentic. See also T 837/01, where it was clear that the document sent to the parties was merely a draft. This amounted in the board's view to a substantial procedural violation. Had the signatures simply been missing, this could have been corrected under R 89 EPC 1973 (now R 140 EPC).

### 3.4. Reasons for the decision

R 111(2) EPC expressly stipulates that appealable decisions are to be reasoned.

#### 3.4.1 Purpose of the duty to provide reasons

R 111(2) EPC (formerly R 68(2) EPC 1973) embodies the general principle of law that decisions must be reasoned and states: "Decisions of the European Patent Office which are open to appeal shall be reasoned ...". This principle is intended to ensure fairness between the EPO and parties to proceedings and enable the decision to be reviewed on appeal (T 70/02). The EPO can only properly issue a decision against a party if that decision is adequately reasoned (T 652/97). In T 292/90 the board found that the reasoning given in a decision open to appeal has to enable the appellants and the board of appeal to examine whether the decision was justified or not. In T 265/03, and in T 1356/05 and T 1360/05, both referring to T 278/00 (OJ 2003, 546), the boards held that also from the point of view of the practical functioning of the system envisaged in the EPC, they could not examine the appeal in the absence of a reasoned decision.

#### 3.4.2 Right to be heard – right to have submissions taken into consideration

The right to be heard is enshrined in Art. 113 EPC and reads: "The decisions of the European Patent Office may only be based on grounds or evidence on which the parties concerned have had an opportunity to present their comments." The boards refer to this right in their case law on the duty to provide reasons under R 111(2) EPC. The right to be heard under Art. 113(1) EPC is not just a right to present comments but also to have those comments **duly considered** (see, e.g. R 8/15; J 7/82, OJ 1982, 391; T 508/01; T 763/04; T 1123/04 and T 246/08). The comments presented must be considered in the ensuing decision (J 7/82, OJ 1982, 391 and T 246/08). In R 8/15 the Enlarged Board held that

Art. 113(1) EPC implies that decisions of the EPO boards of appeal should adequately state the reasons on which they are based in order to show that the parties were heard. A party must be able to examine whether, in its view, the board has afforded it the right to be heard in order to be in a position to decide on whether or not to file a petition under Art. 112a(2) (c) EPC. However, Art. 113(1) EPC must be interpreted more narrowly than R. 102(g) EPC which requires a board to give reasons for its decision, but infringement thereof is not as such a ground for review. In other words: for the purpose of compliance with the right to be heard, reasons may be incomplete, but as long as they allow the conclusion to be drawn that the board, in the course of the appeal proceedings, substantively assessed a certain point arising in the procedure that it found to be relevant, there is no violation of Art. 113(1) EPC.

In T. 1123/04 the board observed that the opportunity to present comments and arguments guaranteed by Art. 113(1) EPC is a fundamental principle of the examination, opposition and appeal procedures and cited the finding in T. 508/01 that this is not just a right to present comments but also to have those comments duly considered.

In T. 246/08 the board found that it had to be clear from the reasons that the core arguments had been addressed in substance in arriving at the decision. The decision had to show that all potentially refutative arguments adduced by a party were actually refutable. The board cited T. 763/04 and said that merely repeating the parties' submissions was not enough. The board in T. 1997/08 ruled that comments received in response to communications had to be taken into consideration too.

In T. 420/86, for example, it was found that the opposition division had based its decision on factors on which the parties had been unable to comment because it had only emerged in the written reasons that a further document had been of central importance to the decision.

### 3.4.3 The requirement of sufficient reasoning

According to the case law of the boards of appeal (see e.g. T. 740/93; T. 1709/06; T. 2352/13; T. 278/00, OJ 2003, 546 and T. 1182/05) a "reasoned" decision should deal with all important issues of dispute. The grounds upon which the decision was based and all decisive considerations in respect of the factual and legal aspects of the case must be discussed in detail in the decision.

In T. 292/90 the board held that a decision should discuss the facts, evidence and arguments which are essential to the decision in detail. It also has to contain the logical chain of reasoning which led to the relevant conclusion.

On inventive step; confirmed in many decisions, e.g. T. 951/92, T. 740/93, T. 698/94, T. 278/00 (OJ 2003, 546); T. 70/02, T. 963/02, T. 897/03, T. 763/04, T. 316/05, T. 1366/05, T. 1612/07, T. 1870/07, T. 1997/08 and T. 2366/11).

In T. 70/02 the board held that reasoning does not mean that all the arguments submitted should be dealt with in detail, but it is a general principle of good faith and fair proceedings

that reasoned decisions contain, in addition to the logical chain of facts and reasons on which every decision is based, at least some motivation on crucial points of dispute in this line of argumentation in so far as this is not already apparent from other reasons given.

In T 1123/04 the board was of the view that it was not enough if a board of appeal had to reconstruct or even speculate as to the possible reasons for a negative decision in the first-instance proceedings. As a rule, a decision within the meaning of R. 68(2) EPC 1973 should be complete and self-contained. The reasons were inadequate if the only arguments advanced by the examining division were unsubstantiated claims.

#### 3.4.4 Deficient reasons

##### a) Deficient reasons sufficient for the purposes of Rule 111(2) EPC?

According to established case law (T 292/90; T 951/92; T 740/93; T 698/94; T 278/00, OJ 2003, 546, T 70/02; T 963/02; T 897/03; T 763/04; T 316/05; T 1366/05; T 1612/07; T 1870/07; T 1997/08; T 2366/11 and T 1787/16), a decision should consider the essential facts, evidence and arguments in detail and contain the logical chain of reasoning which led to the conclusion drawn.

However there are isolated decisions where deficient reasons have been treated as being sufficient as long as they amounted to some form of reasoning at all. In T 856/91 the board regarded incomplete and poor reasoning as being sufficient for the purposes of R. 68(2) EPC. In T 1231/03, it was decided that the contested decision contained an assessment of the main points in dispute and was therefore sufficiently reasoned. The decision's defects in terms of its content (incoherent line of argument, inaccurate formulation of the technical problem and allegedly erroneous assessments) were not an infringement of R. 68(2) EPC 1973 in this case. In T 647/93 (OJ 1995, 132) the board found that the reasons cited by the examining division in its refusal decision were somewhat "enigmatic" and without basis in the EPC 1973. However, even if those reasons were therefore ill-founded, this did not mean that the decision did not contain any at all within the meaning of R. 68(2) EPC 1973 or that there had been a substantial procedural violation. In T 374/12 the board found that no consideration whatsoever had been given to a line of attack considered to be important by the opponent, as distinct from T 856/91 and T 1231/03, where in each case there had been a gap in the reasoning. Also in T 1747/06 the board distinguished the case before it from that in T 856/91 because no reasons of any kind had been given. For other cases in which nothing akin to reasons were given, see in this chapter III.K.3.4.4 c) "No reasons for decision".

In T 2461/10 the board held that a distinction had to be made between cases where the examining division made an error of judgement on substantive issues and those where it based its decision without any legal basis on a non-existent ground for refusal. Only in the latter case was there a substantial procedural violation.

This distinction between acceptable but deficient reasoning and non-existent reasoning is not always made. The prevailing view in the case law is that the requirement of sufficient reasoning set out under chapter III.K.3.4.3 applies (T 292/90; T 951/92; T 740/93;